

General Photography Services Agreement

THIS AGREEMENT is made as _____ of between (“**Client**”) and (“**Photographer**”).

Client

Name:

Address:

Phone Number: Click or tap here to enter text.

Email:

JNguyen Co.

Photographer: Johnny Nguyen

ABN 17806783014

5 Halifax Close, Palmerston, ACT, 2913

0426 864 865

1. Engagement of Photographer

1.1 Services.

Subject to the terms set out herein, Client engages Photographer to provide, and Photographer agrees to provide, the photography services described in this Section 1.1 (the “Services”).

Date of Event:

Location of Event: Click or tap here to enter text.

Description of Services: Click or tap here to enter text.

Coverage Time: _____ consecutive hours, start time Click or tap here to enter text.
to Click or tap here to enter text.

As part of the Services, the Photographer will produce or take similar action to create materials from Images and provide related deliverables (as set out above) pursuant to the provision of the Services (“**Work Product**”). “**Images**” means photographic material, whether still or

moving, created by Photographer pursuant to this Agreement and includes, but is not limited to, transparencies, negatives, prints or digital files, captured, recorded, stored or delivered in any type of analogue, photographic, optical, electronic, magnetic, digital or any other medium.

1.2 Exclusivity. Client acknowledges and agrees that Photographer will be the exclusive provider of the Services in coverage of the Event, unless otherwise agreed to by the parties in writing.

2. Fees and Deposit

2.1 Fees. Client will pay Photographer the fees set out herein in this Section 2.1 ("**Fees**"), including any applicable federal or state/provincial sales or value-added taxes due on such Fees.

Total Fee for Services: [Click or tap here to enter text.](#)

Additional Hourly Pricing: **\$100/hour**

Deposit due upon signing: [Click or tap here to enter text.](#)

Remaining amount [Click or tap here to enter text.](#) due at the end of the event day ()

2.2 Late Payment. Any outstanding balance not paid within 7 days of the due date will incur a late fee of 1.5% per month (or the maximum permitted by law, whichever is less) on the outstanding amount, calculated from the due date until the date of payment in full.

2.3 Deposit. Client acknowledges and agrees that the deposit amount set out above is due upon the signing of this Agreement and is not refundable ("**Deposit**"), so as to fairly compensate Photographer for committing his/her time to provide the Services and turning down other potential projects or clients. Both parties agree that the Deposit will be credited towards the total Fees payable by Client.

3. Package & Services

The Photographer agrees to provide the following services:

- hours coverage
- Delivery [Click or tap here to enter text.](#) professionally edited high-resolution images.
- Online gallery for viewing and downloading

4. Delivery Timeline

Final edited images will be delivered within 4-8 weeks after the Event Day via an online gallery and/or download link.

5. Photo Editing & Revisions

After you receive your edited photos, you'll have up to 7 days to share your feedback. We're happy to provide one round of re-edits free of charge. If you'd like further adjustments beyond that, an additional fee of \$15 per photo or \$250 per video will apply.

6. Client Responsibilities

6.1 Required Consents. Client will ensure that all required consents, as applicable, have been obtained prior to performance of the Services, including any consents required for the performance of Services and the delivery of Work Product by Photographer and, as applicable, from venues or locales where the Services are to be performed or from attendees of the event.

6.2 Expenses. Client will provide the means of travel or be responsible for reasonable travel expenses incurred by Photographer that are necessary for the performance of the Services or travel that is otherwise requested by Client where the location of the performance of the Services is not in the city of **Canberra, Australia**. Client will be responsible for any other expenses incurred by Photographer that are necessary for the performance of the Services as more particularly set out in Article 2.

6.3 Waiver. Client (on behalf of himself/herself and any other participant whose image or recording may be captured by the Services) hereby waives all rights and claims, and releases Photographer from any claim or cause of action, whether now known or unknown, relating to the sale, display, license, use and exploitation of Images pursuant to this Agreement.

6.4 Model Release. Client (on behalf of himself/herself and all persons whose likeness is captured during the Services) hereby grants Photographer an irrevocable, worldwide, royalty-free licence to use, display, publish and reproduce any Images containing Client's or any attendee's likeness for the purposes of Photographer's portfolio, website, social media, and general marketing and promotional materials. Client warrants that they have obtained consent from all attendees over the age

of 18 and from the parent or guardian of any minors whose likeness may be captured during the Services.

7. Photographer Responsibilities

7.1 Equipment. Client will not be required to supply any photography equipment to Photographer.

7.2 Manner of Service. Photographer will ensure that the Services are performed in a good, expedient, workmanlike and safe manner, and in such a manner as to avoid unreasonable interference with Client's activities.

7.3 Photography Staff. Photographer will, and will ensure that all Photography Staff (employees, assistants or other parties engaged by Photographer to assist with the Services):

comply with the reasonable directions of Client from time to time regarding the safety of attendees at the event and applicable health, safety and security requirements of any locations where the Services are provided;

ensure that Work Product meets the specifications set out in Section 1.1 in all material respects.

Photographer will be responsible in every respect for the actions of all Photography Staff.

8. Artistic Release

8.1 Consistency. Photographer will use reasonable efforts to ensure that the Services are produced in a style consistent with Photographer's current portfolio, and Photographer will use reasonable efforts to consult with Client and incorporate any reasonable suggestions.

8.2 Style. Client acknowledges and agrees that:

Client has reviewed Photographer's previous work and portfolio and has a reasonable expectation that Photographer will perform the Services in a similar style

Photographer will use its artistic judgement when providing the Services, and shall have final say regarding the aesthetic judgement and artistic quality of the Services; and

Disagreement with Photographer's aesthetic judgement or artistic ability are not valid reasons for termination of this Agreement or request of any monies returned.

9. Term and Termination

9.1 **Term.** This Agreement will begin on the Effective Date and continue until the latter of (i) the date where all outstanding Fees under this Agreement are paid in full; or (ii) the date where all final Work Product has been delivered ("**Term**").

9.2 **Cancellation.** Client may terminate the Agreement ("**Cancellation**") and/or reschedule the Services ("**Rescheduling**") by providing Photographer with written notice no later than **30 days** before the original date of the Event (the "**Minimum Notice**"). Client acknowledges and agrees that Client is not relieved of any payment obligations for Cancellations and Rescheduling unless the Minimum Notice in accordance with this Article 6 is duly provided or unless the parties otherwise agree in writing.

9.3 **Rescheduling.** In the event of Rescheduling, Photographer will use commercially reasonable efforts to accommodate Client's change. If Photographer is not able to accommodate Client's change despite using commercially reasonable efforts, the parties agree that such Rescheduling will be deemed as Cancellation by Client and that Photographer will be under no obligation to perform the Services other than on the original date of the event.

9.4 **No Refund.** Client acknowledges and agrees that Cancellation by Client will not result in a refund of any fees paid on or prior to the date of Cancellation by Client.

9.5 **Replacement.** In the event that Photographer is unable to perform the Services, Photographer, subject to Client's consent, which is not to be reasonably withheld, shall cause a replacement photographer to perform the Services in accordance with the terms of this Agreement. In the event that such consent is not obtained, Photographer shall terminate this Agreement and shall return the Deposit and all fees paid by Client, and thereafter shall have no further liability to Client.

10. Ownership of Work Product by Photographer

10.1 Ownership of Work. Photographer will own all right, title and interest in all Work Product. Client (on behalf of itself and any attendees at the event) hereby grants Photographer and any of its service providers an exclusive, royalty-free, worldwide, irrevocable, transferable and sublicensable license to use any materials created by Client or attendees, during the performance of the Services, that may be protected by copyright or any intellectual property rights (“**Event Materials**”) as part of any Work Product or in connection with the marketing, advertising or promotion of Photographer’s services, including in connection with Photographer’s studio, portfolio, website or social media, in any format or medium. Client acknowledges and affirms that no other person or entity has any rights that may prevent or restrict Photographer from using Event Materials as provided herein.

11. Limited License to Client

In plain terms: You are free to share and print your photos for personal use, including on your personal social media accounts. You may not sell them or use them for commercial purposes without the Photographer’s written consent.

11.1 Personal Use. Photographer hereby grants Client an exclusive, limited, irrevocable, royalty-free, non-transferable and non-sublicensable license to use Work Product for Client’s Personal Use, provided that Client does not remove any attribution notices or copyright notices included by Photographer in any Work Product. “**Personal Use**” includes, but is not limited to, use (i) of photos on Client’s personal social media pages or profiles; (ii) in Client’s personal creations, such as scrapbooks, albums or personal gifts; (iii) in non-commercial physical display; and (iv) in personal communications, such as family newsletter, email, or holiday card. Client will not make any other use of the Work Product without Photographer’s prior written consent, including but not limited to use of the Work Product for commercial sale.

12. Indemnity and Limitation of Liability

12.1 Indemnification. Client agrees to indemnify, defend and hold harmless Photographer and its affiliates, employees, agents and independent contractors for any injury, property damage, liability, claim or other cause of action arising out of or related to the Services and or Work Product Photographer provides to Client.

12.2 Force Majeure. Neither party shall be held in breach of or liable under this Agreement for any delay or non-performance of any provision of this Agreement caused by illness, emergency, fire, strike, pandemic, earthquake, or any other conditions beyond the reasonable control of the non-performing party (each a “**Force Majeure Event**”), and the time of performance of such provision, if any, shall be deemed to be extended for a period equal to the duration of the conditions preventing performance. If such Force Majeure Event persists for more than 60 days, the party not affected by the Force Majeure Event may terminate the Agreement and any prepaid fees for Services not performed (other than the Deposit) shall be returned within 15 days of the date of termination of the Agreement.

12.3 Failure to Deliver. Photographer shall not be held liable for delays in the delivery of such Work Product, or any Work Product undeliverable, due to technological malfunctions, service interruptions that are beyond the control of Photographer (including as a result of delays in receipt of instructions from Client) and for Work Product that fails to meet the specifications set out in Section 1.1 due to the actions of Client or attendees at the Event that are beyond the control of Photographer (e.g., camera flashes).

12.4 Maximum Liability. Notwithstanding anything to the contrary, Client agrees that Photographer’s maximum liability arising out of or related to the Services or the Work Product shall not exceed the total Fees payable under this Agreement.

13. General

13.1 Notice. Parties shall provide effective notice (“**Notice**”) to each other via either of the following methods of delivery at the date and time which the Notice is sent:

Photographer’s Email: johnny@jnguyen.co

Client’s Email:

13.2 Survival. Articles 10, 11, 12 and 13 will survive termination of this Agreement.

13.3 Governing Law. This Agreement will be governed by the laws of the **Australian Capital Territory, Australia**, and the parties submit to the exclusive jurisdiction of the courts of that territory.

13.4 Amendment. This Agreement may only be amended, supplemented or otherwise modified by written agreement signed by each of the parties.

13.5 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to the Services and

supersedes all prior agreements and understandings both formal and informal.

13.6 Dispute Resolution. In the event of any dispute arising out of or in connection with this Agreement, the parties agree to first attempt to resolve the dispute through good faith negotiation. If the dispute is not resolved within 14 days of written notice, the parties agree to submit the dispute to mediation before commencing any legal proceedings. The costs of mediation shall be shared equally between the parties, unless otherwise agreed.

13.7 Severability. If any provision of this Agreement is determined to be illegal, invalid or unenforceable, in whole or in part, by an arbitrator or any court of competent jurisdiction, that provision or part thereof will be severed from this Agreement and the remaining part of such provision and all other provisions will continue

14. Payment

Payment can be made by bank transfer to:

Account Name: Thanh Nhan Nguyen

BSB: 062 924

Account: 10141719

Signatures

Client(s):

Name:

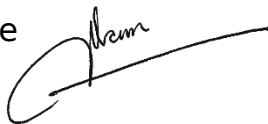
Signature

Date

Photographer:

Name: Johnny Nguyen

Signature



Date